

HOUSE No. 443

The Commonwealth of Massachusetts

PRESENTED BY:

Samantha Montañó

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to conviviality and downtown revitalization.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Samantha Montañó</i>	<i>15th Suffolk</i>	<i>1/16/2025</i>
<i>Thomas W. Moakley</i>	<i>Barnstable, Dukes and Nantucket</i>	<i>4/7/2025</i>

HOUSE No. 443

By Representative Montañó of Boston, a petition (accompanied by bill, House, No. 443) of Samantha Montañó for legislation relative to happy hour in the Commonwealth. Consumer Protection and Professional Licensure.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to conviviality and downtown revitalization.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 138 of the General Laws, as appearing in the 2022 Official Edition, is hereby
2 amended by inserting after Section 33B the following 2 new sections:-

3 Section 33C. In a city or town that accepts this section in the manner provided in section
4 4 of chapter 4, an establishment holding a license to sell alcohol to be drunk on the premises
5 shall be permitted to sell alcoholic beverages or alcohol at a discounted price, in a manner as
6 approved by the city or town.

7 Section 33D. In a city or town that accepts this section in the manner provided in section
8 4 of chapter 4, a common victualler duly licensed under chapter 140 or any person duly licensed
9 under section 12, section 19, section 19C or section 19D to sell all alcoholic beverages or only
10 wines and malt beverages may discount any alcoholic beverages during a specified time period
11 subject to ordinance, by-law, or other limitations as provided by the city and town and; provided,
12 however, that: (i) the prices of alcoholic beverages are not changed during the time period during

13 which they are discounted; (ii) alcoholic beverages are not discounted between the hours of 10
14 p.m. and the licensed establishment's closing hour; and (iii) notice of the discount of the
15 alcoholic beverages during the time period specified is posted on the licensed premises and on
16 the licensee's publicly available website not less than 3 days prior to the specified time.
17 Authorized persons may advertise events permitted under this statute consistent with local
18 approval.